

		oppose the motion, Plaintiff did not meet her burden of proving any fact necessary to its defense. This action is stayed pending completion of arbitration. (<i>Code Civ. Proc.</i>, § 1281.4.) <i>Counsel for Defendants shall provide notice of this ruling.</i>
10.	Conlisk v. Montelongo 25-1487772	Before the Court is a motion to strike filed by defendants Joel Montelongo and Ghazal & Sons, Inc. dba All American Plastic & Packaging (Defendants) as to portions of the first amended complaint (FAC) of plaintiff Kristy L. Conlisk (Plaintiff). For the reasons set forth below, the motion is GRANTED with 10 days' leave to amend. The FAC alleges facts sufficient to show malice and/or conscious and deliberate disregard for the safety of others, but there are insufficient facts showing corporate liability including conduct by an officer, director or managing agent. (<i>Code of Civ. Proc.</i> § 436 [standard]; <i>Civ. Code</i> § 3294, subd. (b),(c)(1).) <i>Counsel for Defendants shall give notice of this ruling.</i>
11.	Hertzske v. Wood 26-1571720	(Continued)
12.	Doe v. Hawkeye Wrestling Club 23-1324446	The motion for summary judgment or, in the alternative, summary adjudication filed by defendant United States of America Wrestling Association (USA Wrestling) directed to the complaint of plaintiff John SKC Doe, by and through his guardian ad litem, Jane SKK Doe (Plaintiff) is DENIED. The party moving for summary judgment "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (<i>Food Safety Net Services v. Eco Safe Systems USA, Inc.</i> (2012) 209 Cal.App.4th 1118, 1124.) A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto. (<i>Code Civ. Proc.</i>, § 437c(p)(2).) A defendant does not satisfy its burden of proof by producing evidence that does not exclude the possibility that plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) "There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element ... necessary to sustain a judgment in his favor." (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted).)